

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Shalini Tripathi	Team: Team # 4	CCRB Case #: 201111319	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Sunday, 08/28/2011 12:00 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/28/2013	Precinct: 44
Date/Time CV Reported Mon, 08/29/2011 11:01 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 09/02/2011 3:29 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. An officer			044 PCT
2. POM Alexis Dejesus	01421	946903	044 PCT
3. SGT Danny Diaz	03970	923763	044 PCT

Officer(s)	Allegation	Investigator Recommendation
A . An officer	Force: An officer used physical force against § 87(2)(b)	A . Complainant Uncooperative
B . POM Alexis Dejesus	Force: PO Alexis Dejesus used physical force against § 87(2)(b)	B . Complainant Uncooperative
C . SGT Danny Diaz	Force: Sgt. Danny Diaz tightly handcuffed § 87(2)(b)	C . Complainant Uncooperative

Case Summary

On August 29, 2011, § 87(2)(b) called 911 to file a complaint on behalf of her brother, § 87(2)(b) and was transferred to IAB, who forwarded the complaint to the CCRB on September 2, 2011. On August 28, 2011, while § 87(2)(b) was being arrested at his address, § 87(2)(b) in the Bronx, PO1, an unidentified female officer, slapped his face. He was taken to the 44th Precinct stationhouse, where PO Alexis DeJesus, identified by IAB, punched his face, causing swelling, and Sgt. Danny Diaz, also identified by IAB, tightened his handcuffs, which injured his wrists. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

On September 15, 2011, § 87(2)(b) appeared at the CCRB to provide a statement regarding this incident. However, before he was interviewed, he asked the undersigned investigator to call his lawyer, § 87(2)(b), to see if he had any objections to § 87(2)(b) providing a statement which could be subpoenaed. § 87(2)(b) § 87(2)(b) stated that he did not want § 87(2)(b) to speak to the CCRB, and so § 87(2)(b) left the agency without providing a statement.

For the above reason, it is recommended that this case be closed as **complainant uncooperative**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date